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February 11, 2025

By: Jett

An Act relating to flag-related offenses; defining terms; creating felony offense; providing for penalties; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 376 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. As used in this section, the terms "flag", "standard", "colors", or "ensign" of the United States shall have the same meaning as used in subsection C of Section 372 of Title 21 of the Oklahoma Statutes.

B. Any person who takes down or removes the flag, standard, colors, or ensign of the United States of America on public property or private property owned by another person or entity without permission and puts up the flag, standard, colors, or ensign of any other entity shall, upon conviction, be guilty of a felony punishable by a fine not to exceed Three Thousand Dollars (\$3,000.00), imprisonment in the custody of the Department of

1 Corrections for not more than three (3) years, or by both such fine
2 and imprisonment.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
5 February 11, 2025 - DO PASS
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